

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Candace Taylor	Team: Squad #06	CCRB Case #: 201503924	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 05/15/2015 7:30 PM	Location of Incident: Veterans Road West and Rossville Avenue	18 Mo. SOL 11/15/2016	Precinct: 123
Date/Time CV Reported Fri, 05/15/2015 9:01 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 05/15/2015 9:01 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM William Palmer	10753	937240	123 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM William Palmer	Abuse: PO William Palmer threatened to issue summonses to § 87(2)(b)	A . Unsubstantiated

Case Summary

On May 15, 2015, § 87(2)(b) filed this complaint online with the CCRB.

On May 15, 2015, at approximately 7:30 p.m., § 87(2)(b) drove to a gas station in the vicinity of Veterans Road West and Rossville Avenue in Staten Island. § 87(2)(b) bought gas and left the station but failed to put on his seatbelt. As he approached a nearby intersection, he was pulled over by PO William Palmer and issued a summons for failing to wear his seatbelt. § 87(2)(b) asked PO Palmer if officers had nothing else to do than stopping individuals for seatbelt violations. PO Palmer allegedly responded, “I’m going back to my car to write you three more tickets because I see this as a sign of disrespect” (**Allegation A**). PO Palmer then continued his patrol (01 Board Review). § 87(2)(b) was issued summons § 87(2)(b) on May 15, 2015, for driving without a seatbelt (02 Board Review). No further summonses were issued.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

§ 87(2)(b) contacted the CCRB on May 20, 2015, and provided a phone statement, at which time mediation was offered and he rejected (03 Board Review). As of June 17, 2015, § 87(2)(b) has not filed a Notice of Claim for this incident (04 Board Review). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (06 Board Review).
- PO Palmer has been a member of the NYPD for 10 years with no substantiated allegations (see Officer History).

Findings and Recommendations

Allegations not Pleaded.

§ 87(2)(g)

Allegation A- Abuse of Authority: PO William Palmer threatened to issue summonses to

§ 87(2)(b)

§ 87(2)(b) was stopped for a vehicle infraction and not wearing a seat belt. § 87(2)(g)

§ 87(2)(b) provided a statement on to the CCRB May 27, 2015. He admitted that he was not wearing a seat belt when he left the gas station and that upon seeing PO Palmer at the corner of Rossville Avenue and Veterans Road West in Staten Island, he tried to put it on. Shortly after, § 87(2)(b) was pulled over by PO Palmer and handed over his documents. § 87(2)(b) believed PO Palmer observed him as he tried to put on the seat belt. PO Palmer returned and gave § 87(2)(b) his documents and said that he was stopped for failing to wear his seat belt which was a violation of New York State Law. § 87(2)(b) asked PO Palmer, “If officers on the south shore of Staten

Island ain't got anything else to do than to stop people for seat belt violations?" § 87(2)(b) stated that PO Palmer looked enraged by his question when he repeated it. PO Palmer told § 87(2)(b) to hand over his license, registration and insurance once more and allegedly said, "I am going back to my car to write you three more tickets because I see this as a sign of disrespect." § 87(2)(b) did not respond. PO Palmer gave § 87(2)(b) his license, registration and insurance card and then returned to his patrol car and drove back to the corner of Rossville Avenue. § 87(2)(b) was issued summons #§ 87(2)(b) by PO Palmer on May 15, 2015, for driving without a seat belt. § 87(2)(b) did not admit to any other infractions (01 Board Review).

In his CCRB statement on June 15, 2015, PO Palmer stated that he was parked under an overpass at a three- way intersection in the vicinity of Rossville Avenue and Veterans Road West, to observe traffic infractions. PO Palmer observed when § 87(2)(b) drove through a stop sign to make a left turn, while on his cell phone and not wearing a seat belt. PO Palmer pulled over § 87(2)(b) and went to the driver's side of § 87(2)(b)'s vehicle. When PO Palmer approached the window, § 87(2)(b) asked why he was stopped, to which PO Palmer replied that he would inform § 87(2)(b) once he received his credentials. PO Palmer then said that he saw § 87(2)(b) on his cell phone and that he drove through a stop sign. PO Palmer also observed that § 87(2)(b) was not wearing a seat belt, which was noted in his memo book (08 Board Review). PO Palmer subsequently issued § 87(2)(b) a summons for driving without a seat belt. § 87(2)(b) did state, "What, you don't respect cops? You don't have anything better to do on Staten Island?" PO Palmer responded to the comments by saying okay and told § 87(2)(b) to wear his seat belt. PO Palmer did not say to § 87(2)(b) "Are we really doing this? I am going back to my car to write you three more tickets because I see this as a sign of disrespect" in response to § 87(2)(b)'s comment. PO Palmer waited for § 87(2)(b) to leave, after which PO Palmer got into his patrol car and resumed patrol. PO Palmer stated that he only wrote the summons for the seat belt violation because summonses for cell phone use and running through a stop sign would result in points on § 87(2)(b)'s driving record (07 Board Review).

§ 87(2)(g)

§ 87(2)(g)

_____ it is recommended that
Allegation A be closed as **unsubstantiated**.

Team: _____

Investigator: _____

	Signature	Print	Date
Supervisor:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date